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File No.: EXP202403915
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RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated July 5, 2024, and based on the following

FACTS

FIRST: On July 5, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202403915, by virtue of which a fine of 5,000 euros was imposed on A.A.A., with NIF ***NIF.1, for the infringement of Article 6.1 of the GDPR, and a second fine of 5,000 euros for the infringement of Article 9 of the GDPR, totaling 10,000 € (ten thousand euros).

This resolution, which was notified to the appellant on July 9, 2024, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (LOPDGDD), and subsidiarily in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures. SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00130/2024, the following Proven Facts were recorded:

Dissemination on the social networks Facebook and Instagram of photos of the complainant without their consent, to advertise the private plastic surgery clinic of the respondent.

THIRD: The appellant submitted on August 9, 2024, to this Spanish Agency for Data Protection, a recourse for reconsideration, in which they state the following:

"The AEPD in its resolution states that the publication of said photographs presupposes a profit for my Clinic, which is completely false, because as I already indicated, I am NOT a Plastic Surgeon, I do not perform aesthetic operations, so I do not obtain any benefit. Furthermore, it should be emphasized that this operation was also not performed in my Clinic.

The resolution indicates that the photos were taken in 2017 and my relationship with B.B.B. is subsequent (2020), but as proven by the emails sent with the doctor, there is no mention of the date; only as a data processor did I do what the data controller indicated to me, also understanding that the consent that the doctor has was valid for publication.

A.A.A. acted as the data processor for B.B.B., responsible for obtaining informed consent from their patient, and ensuring its compliance with the current regulations 3/2018, of December 5. The surgical intervention and consequently the consent, as the complainant points out, was carried out prior to the entry into force of the Law, a fact that A.A.A. was completely unaware of.

Regarding Article 6.1 of the GDPR, since A.A.A. and B.B.B. became aware of the complaint filed (07/18/2022), they deleted the photographs of the complainant.

Measures have also been taken to ensure that the data of our clients are not processed again, and the images have been manually deleted both on Instagram and Facebook of Clinic ***CLÍNICA.1 (commercial name and identifying activity of aesthetic medicine of A.A.A.).

A sweep has also been conducted on Google search to evaluate the removal of images and videos from the Facebook and Instagram pages, the links of which we attach for your verification.

https://www.instagram.com/***CLÍNICA.1_/

https://www.facebook.com/***CLÍNICA.1.

For this reason, all images of C.C.C. and links to content on the social networks Facebook and Instagram were removed. Additionally, the same procedure has been followed for images or videos with identifiable data of any other person, or they have been PIXELATED, despite having informed consent from the individuals, clients/patients of A.A.A. who appear in

https://www.instagram.com/***CLÍNICA.1_/

https://www.facebook.com/***CLÍNICA.1.

Regarding Article 9 of the GDPR, we reiterate that this party was not the data controller, only the

agent, and that they understood that the controller had the patient's consent, which we believe is the exception under Article 9.2 a).

Regarding the intent/negligence that the resolution states based on A.A.A. being the data controller of health data, it should be emphasized again that A.A.A. has never operated on the patient nor can they, as they are not a surgeon, and therefore cannot advertise their clinic because they do not perform such treatments; they have a contract with B.B.B., and she is the one who operated on the patient, took the photographs, and sent them to this party, understanding that with this sending the doctor had total and legitimate consent from the patient.”

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of the Law C/ Jorge Juan, 6

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28001 – Madrid

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3/11

Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, it should be indicated that the AEPD, through the General Sub-Directorate of Data Inspection, proceeded to carry out preliminary investigative actions to clarify the facts in question, concluding that from the facts contained in the complaint, as well as from the documents submitted along with it by the complainant and the response to the transfer and the accompanying documents, made by A.A.A. (the respondent) and by B.B.B., it is undisputed by the parties that A.A.A. published on the social media profiles (Facebook and Instagram) of the Clinic ***CLÍNICA.1, which it uses as a trade name, before and after photographs of the operation of (...) that B.B.B. performed on the complainant in January 2017. And that this publication was made without the consent of the complainant.

It has also been established that there has never been any type of contractual relationship between the complainant and A.A.A. (the respondent), or the Clinic ***CLÍNICA.1, which it uses as a trade name, as recognized by the complainant in their complaint and by A.A.A. (the respondent) in their response to the transfer.

It has been established that the complainant underwent an operation of (...), performed by B.B.B., and granted their consent for them to carry out the “photographing or filming of the operation(s) or procedure(s) to be performed, for medical scientific or educational purposes since my identity will not be revealed in the images,” although only for “purposes of advances in medical education,” not for commercial advertising purposes of B.B.B.'s activity or of third parties with whom they collaborated. And that the published photographs were taken by B.B.B. when they performed the aforementioned operation in January 2017.

The photographs were sent from the email ***EMAIL.1 to the email ***EMAIL.2 on 12/12/2021, with these email addresses belonging to B.B.B. and the respondent respectively.

These photographs were not published on the aforementioned profiles (Instagram and Facebook) of the Clinic ***CLÍNICA.1, the trade name used by A.A.A., as of 10/02/2023, according to the evidence collected by the AEPD for this purpose.

According to statements from B.B.B. and A.A.A., these photographs would have been removed from social media following the complaint filed by the complainant with Hospital ***HOSPITAL.1 in July 2022, and they remain unavailable and cannot be accessed on the internet.

The contractual relationship between B.B.B. and A.A.A. has been established in the data processing

contract existing between both parties dated 30/01/2020, in which the purposes of the contract are stated as: The processing of “data of patients/clients attended in the facilities of the Clinic of the processor.”

C/ Jorge Juan, 6
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28001 – Madrid
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4/11

treatment by the data controller.” As well as the “advertising in facilities, media, and social networks of the activities of the security officer, provided that the officer indicates this in some communication.”

A.A.A. has provided a communication (email) from B.B.B. in which he sends the photos published by him on the social media profiles of the Clinic ***CLÍNICA.1, the trade name used by A.A.A.

The appealing party has indicated in its appeal that there is no benefit from the publication of the photographs, given that performing surgical interventions is not among its activities. However, it does not consider that the photographs subject to the complaint were disseminated through its own social media profiles for the promotion of its clinic. This constitutes a purpose of its own that seeks a benefit for its activity, unrelated to the object of the data processing contract, as indicated above. This makes the appealing party, for all intents and purposes, responsible for the data processing for which it is sanctioned, which consists precisely in the publication of the photographs.

This conduct is classified as negligent in the contested resolution, a classification that is not influenced by the fact that the appealing party does not perform surgeries like the one carried out on the claimant, contrary to what was alleged by it in its appeal.

Regarding the statements made by the appealing party, which basically reiterate the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in Legal Grounds III, IV, V, and VI of the contested Resolution, as transcribed below:

“III

Response to the allegations presented

The responding party, in response to the initiation agreement, submitted a written statement on April 3, 2024, stating that it is not responsible for the facts attributed to it since it did not participate in the surgical intervention of the claimant, nor does it know the claimant, and the dissemination of such photographs does not provide it with any benefit since it only performs aesthetic treatments without surgical interventions, thus being exempt from all responsibility as it is only the data processor and not the responsible party.

The responding party, in response to the proposed resolution, submitted a written statement on June 3, 2024, indicating that it is not a plastic surgeon, but the owner of the property where the surgeon B.B.B. practices her profession, and that the consent that the doctor has is valid for the publication of the photographs of the claimant.

The responding party has also stated that, not being a surgeon, it did not participate in the intervention performed on the claimant, and that the publication of the images does not provide it with any benefit, as it is not the surgeon who operated on the claimant, but the owner of the Clinic ***CLÍNICA.1, and that the consent given

C/ Jorge Juan, 6
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28001 – Madrid
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5/11

by the claiming party to be operated on by B.B.B., is valid for the publication of the before and after photographs of the operation performed on the claiming party. Furthermore, the responding party indicates that the claimant did not contact them to request the removal of the photographs; however, at the moment that the surgeon B.B.B. indicated, the images were manually removed both on Instagram and on Facebook from Clinic ***CLÍNICA.1, and the same procedure has been followed with images or videos containing identifiable data of any other person.

In response to such statements, it should be noted that it has been verified that the aesthetic operation to which the claiming party was subjected took place at a center different from the clinic of the responding party, as the claimant was operated on at Clinic ***CLÍNICA.2 on January 10, 2017, and the clinic advertised by the responding party is Clinic ***CLÍNICA.1. Therefore, it is a verified fact that the respondent, whether or not a surgeon, did not participate in the intervention performed on the claiming party, and there is no contract linking them to the claiming party, and thus they would not have been authorized to treat the photographs of the before and after of the operation performed by B.B.B. on the claiming party. Therefore, using such photographs to advertise the clinic of which they are the owner implies the pursuit of profit or benefit.

Additionally, the photographs of the claiming party were taken before and after the aesthetic operation performed by the responding party on the claiming party in 2017, that is, years before the formalization of the treatment contract between the claiming party and B.B.B.

Therefore, the AEPD must indicate that we are not talking about a withdrawal of consent, nor any other cause of legitimacy that would authorize the treatment of the personal data of the claimant, in this case, their image. Thus, it is not required for the claiming party to exercise their right to cancellation, nor any of the other rights recognized in the GDPR, for the treatment of such photographs by the responding entity to cease, as this would only apply if the claiming party had ever granted the responding party their authorization for such treatment.

In short, the responding party is the exclusive responsible party for the dissemination of the before and after photos of the operation performed on the claiming party on social media.

IV

Article 6.1 of the GDPR

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful, stating the following:

C/ Jorge Juan, 6

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28001 – Madrid

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6/11

"1. The processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of persons and property, as well as their facilities."

It is considered that the facts presented, that is, that the responding party has used before and after

photos of the intervention by B.B.B. without having the express consent of the claiming party, nor any other cause of legitimacy, the holder of the image of the photographs in conflict, for the purpose of publishing them on social media and advertising their clinic, could constitute unlawful processing of personal data, which would imply a violation of Article 6 of the GDPR.

The responding party claims that the claimant in 2017 signed their consent authorizing the intervention itself and the taking of photographs and/or recordings, but not the communication of those photos to third parties.

Furthermore, Dr. B.B.B. and the responding party state that the before and after photos of the operation used to advertise the clinic of the responding party were obtained with the consent of the claiming party, as it occurred in the A.A.A. of a treatment contract entered into in 2020.

C/ Jorge Juan, 6

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28001 – Madrid

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7/11

In response to such allegations from the defendant, the AEPD considers that the publication of the before and after photos of the claimant's cosmetic surgery cannot be justified by the contract entered into in 2020 between the defendant and B.B.B., and therefore it cannot be understood that the claimant's consent is present, for the following reasons:

First, the cosmetic surgery to which the claimant underwent was performed at a different center than the clinic of the defendant, as the claimant was operated on at ***CLINIC.2 on January 10, 2017, and the clinic advertised by the defendant is ***CLINIC.1.

Second, the photos of the claimant were taken before and after the cosmetic surgery performed by the defendant on the claimant in 2017, that is, years before the formalization of the treatment contract between the claimant and B.B.B.

Therefore, the defendant would be the sole responsible party for the dissemination of the before and after photos of the surgery performed on the claimant on social media.

In this regard, it should be noted that the present procedure focuses on the alleged liability of the defendant for the dissemination of the before and after photos of the surgery performed by B.B.B. on the claimant.

V

Classification of Article 6.1 of the GDPR

The known facts could constitute an infringement, attributable to the defendant, classified under Article 6.1 of the GDPR, as indicated earlier in legal basis II, which could imply the commission of an infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount: a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;” For the purposes of the statute of limitations for infringements, the infringement mentioned in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations:

b) The processing of personal data without any of the lawful conditions for processing established in Article 6 of Regulation (EU) 2016/679. (...)

VI

Proposal for a sanction for infringement of Article 6.1 of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are effective, proportionate, and dissuasive in each individual case.”

Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j).

When deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the affected parties;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

C/ Jorge Juan, 6

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28001 – Madrid

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9/11

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the responsible party or the person in charge in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, "Sanctions and corrective measures," provides:

"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The link between the infringer's activity and the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having a data protection officer when it is not mandatory."

In accordance with the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case on the respondent as responsible for an infringement classified in Article 83.5.a) of the GDPR, an initial assessment considers the following aggravating factors to be concurrent:

- Intentionality/Negligence in the infringement (paragraph b): the notable negligence observed in the commission of the infringement, to the extent that the respondent has disseminated on social media photographs of the claimant, provided by B.B.B., without obtaining consent or any other legitimate basis from the claimant.

It is appropriate to graduate the sanction to be imposed on the respondent and set it at the amount of

€5,000 in accordance with Article 58.2 of the GDPR.”

III

Conclusion

C/ Jorge Juan, 6

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28001 – Madrid

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10/11

Consequently, in this appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

Having regard to the cited provisions and others of general application,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on July 5, 2024, in file EXP202403915.

SECOND: TO NOTIFY this resolution to A.A.A.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, it will proceed to its collection in the executive period.

If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

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C/ Jorge Juan, 6

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28001 – Madrid

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11/11

through one of the other registers provided for in Article 16.4 of the aforementioned LPACAP. It must also send to the Agency the documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the precautionary suspension to be concluded.

180-21112023

Mar España Martí

Director of the Spanish Agency for Data Protection

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